

four times a year, providing speedier access to justice for all. Previously, the only guaranteed legal sittings had been those of the court established in 1178 at Westminster. Chapter 39 was even more significant, as it included rights later enshrined in the *Habeas Corpus* Act of 1679. It stated that no free man could be arrested, imprisoned, dispossessed, exiled, outlawed, or in any way victimized except by the “lawful judgment of his peers” or by the law of the land. The following chapter affirmed that the right to justice could not be bought, refused, or delayed. By accepting Chapters 39 and 40, the king swore for the first time to be bound by the law.

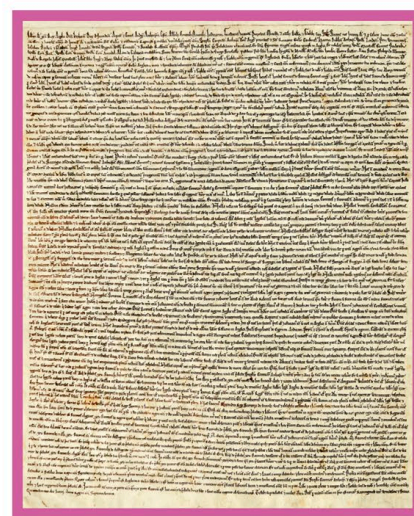
Early survival

The barons knew that John would try to renege on the charter. As a precaution, Chapter 61 stated that should the king break the agreement, a committee of 25 barons could hold him to account. John could not accept such an assault on his authority, and in August, he secured a papal bull (a public decree from the Pope) allowing him to revoke the charter. This prompted the First Barons’ War, as a group of barons

supported by a French army rose up against the king. When John died in October 1216, his heir, Henry III, was just 9 years old and in no position to challenge the barons as John had. Most of the warring barons quietly defected back to the government side, and by 1217, the rebellion had collapsed.

The charter was first reissued in 1216, when Henry III assumed the throne and again in 1218, when it was named Magna Carta. The 1225 reissue expanded the coverage of the charter’s protection from “all free men” to “all men.” It did not explicitly offer women the same protection, although some have since argued that, at this time, “men” could mean “people.”

The 1225 reissue was regarded as definitive and incorporated into law. It marked the transition of the rights it included from common law (laws developed on the basis of previous rulings) to statute law passed by a legislature. Edward I confirmed this with his 1297 reissue. The 13th century also saw legal consolidation in the common law. After Ranulf de Glanvill (see box, below) had paved the way, another treatise, *De legibus*



Magna Carta was issued in Latin—the legal language of the day. About 17 copies survive, including ones at Salisbury and Lincoln cathedrals and the Bodleian Library in Oxford.

et consuetudinibus Angliae (*On the Laws and Customs of England*), attributed to cleric and jurist Henry de Bracton, developed the subject in around 1235. This treatise also introduced the idea of *mens rea* (criminal intent) and formulated a theory of kingship inspired by Magna Carta, stating that a king was a rightful monarch only if he obtained and exercised power in a lawful manner. Under Edward III, laws known as the Six Statutes expanded the protection Magna Carta offered; they included explicit statements of the right not to have goods or chattels seized (1331) and that of all men to have access to due process of law if accused (1368).

Reinforced by Parliament

The 13th century marked the birth of parliamentary democracy. Over time, the king’s right to appoint whom he wished to his royal council of administrators and advisers was eroded. A further baronial revolt against Henry III led

Ranulf de Glanvill and the common law

One of the earliest authoritative texts on common law was the *Tractatus de legibus et consuetudinibus regni Angliae* (*Treatise on the Laws and Customs of England*), attributed to Ranulf de Glanvill and written between 1187 and 1189. Born around 1112, Glanvill was the Justiciar of England—Henry II’s chief minister from 1180 to 1189.

An independent judiciary had begun to emerge. In 1178, an ordinance established that five judges should sit in

Westminster to hear suits—the origins of the Court of the King’s Bench. Their decisions, the precedents that such decisions set, and the reference to earlier customary law marked the emergence of English common law. The treatise, which the king had commissioned to help establish peace in turbulent times, clearly defined the legal processes of the day.

Dismissed and imprisoned by Richard I in 1189, Glanvill died on a crusade in Palestine in 1190.